

Jai Maa Laxmi Cold Storage v. State of U.P.

Allahabad High Court · Division Bench · 12 February 2018 · WRIT - C No. 5558 of 2018 · **Writ dismissed as withdrawn with liberty under Clause 6.14.**

HEADNOTE

The petitioner was permitted to withdraw the writ, without objection from the distribution corporation, with liberty to pursue the instalment remedy under Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005. The petition was dismissed as withdrawn. The Court did not decide the claim on merits.

FACTUAL SUMMARY

Jai Maa Laxmi Cold Storage filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and two others, including the electricity distribution corporation. After the matter was heard for some time, counsel for the petitioner asked to withdraw the petition with liberty to pursue the remedy under Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005. Counsel appearing for the respondent Corporation stated that there was no objection to that prayer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

withdrawal with liberty to pursue instalment remedy

HOLDING

The writ petition was dismissed as withdrawn with liberty to the petitioner to pursue the remedy under Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005, the respondent Corporation having no objection. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

The petitioner was permitted to withdraw the writ, without objection from the distribution corporation, with liberty to pursue the instalment remedy under Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005. The petition was dismissed as withdrawn. The Court did not decide the claim on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO INSTALMENT FACILITY UNDER CLAUSE 6.14

Petition withdrawn; the Court did not consider whether the petitioner was entitled to instalments. ¶ 1